

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Yahya Afridi, CJ
Mr. Justice Muhammad Shafi Siddiqui
Mr. Justice Miangul Hassan Aurangzeb

Civil Petition No. 712 of 2026

*[Against order dated 22.01.2026 of the
Lahore High Court, Lahore passed in Civil
Revision No.44143/2025]*

Muhammad Nasir and others. ... *Petitioners*

Versus

Muhammad Aslam and others. ... *Respondents*

For the Petitioners: Syed Ali Awais Tirmizi, ASC.
[through video-link from Lahore]

For the Respondents: Not represented.

Date of Hearing: 09.06.2026.

ORDER

Muhammad Shafi Siddiqui, J. This petition under Article 185(3) of the Constitution of the Islamic Republic of Pakistan, 1973, seeks leave to appeal against the impugned order dated 22.01.2026 passed by the learned Lahore High Court, Lahore, in Civil Revision No. 44143/2025, whereby the said civil revision has been dismissed.

2. The facts, in brief, are that respondent No.1 instituted a suit for possession through specific performance of an agreement to sell dated 26.12.2001, allegedly executed by respondent No.2 (vendor) in his favour. During the pendency of the suit, respondent No.3 was impleaded on the basis of a subsequent agreement to sell dated 05.03.2002 set up by him against respondent No.2, whereupon he also initiated separate proceedings which, however, were ultimately dismissed. It is an admitted position on the record that in the initial written statement filed by respondent No.2, execution of the agreement to sell in favour of respondent No.1 was acknowledged, though it was asserted that the latter had failed to perform his part of the contract. Subsequently, after the present petitioners, who claim to be subsequent

purchasers through mutation dated 02.03.2010, were impleaded in the suit, a consolidated written statement was filed wherein respondent No.2 resiled from his earlier stance and denied the execution of any such agreement. The learned trial court, vide judgment and decree dated 14.02.2023, dismissed the suit primarily on the ground that respondent No.1 had failed to establish his continuous readiness and willingness to perform the contract, though relief in the nature of a refund of earnest money was granted. In appeal, the learned Additional District Judge, Narowal, vide judgment dated 25.06.2025, reversed the findings of the trial court and decreed the suit for specific performance, inter alia, placing reliance upon the earlier admission of respondent No.2 and holding the present petitioners not to be bona fide purchasers. The civil revision filed by the petitioners thereagainst has been dismissed by the learned High Court through the impugned judgment dated 22.01.2026.

3. We have heard the learned counsel for the petitioners and perused the material available on record.

4. The crux of the controversy revolves around the evidentiary value of the admission made by respondent No.2 in his initial written statement, wherein the execution of the agreement to sell in favour of respondent No.1 was unequivocally acknowledged. The respondent No.2 by virtue of his earlier pleading is estopped to resile from earlier pleading. The doctrine of judicial estoppel would prevent a litigant from taking a contradictory or inconsistent pleading. It is by now a settled principle of law that an admission, unless satisfactorily explained or withdrawn in accordance with law, constitutes substantive evidence against the maker and cannot be permitted to be resiled from by taking a diametrically opposite stance in subsequent pleadings. In the present case, respondent No.2 not only took inconsistent positions in his successive written statements but also abstained from entering the witness box to substantiate the latter plea, thereby rendering such retraction devoid of evidentiary value. The learned courts below have, therefore, rightly attached due weight to the initial admission, which stood further corroborated by the pleadings of respondent No.3.

5. As regards the claim of the petitioners that they are *bona fide* purchasers for value without notice, the record does not disclose any material to demonstrate that they had undertaken due diligence or made

bona fide inquiries prior to acquiring the suit property, particularly when the transaction in their favour was effected during the pendency of litigation. The concurrent finding that they are not entitled to the protection available to a *bona fide* purchaser does not suffer from any misreading or non-reading of evidence. Likewise, the argument pertaining to failure of respondent No.1 to establish readiness and willingness has been duly considered in the context of the peculiar facts of the case, where the delay was attributable to circumstances relating to the title of the vendor, and no perversity has been pointed out in the conclusions drawn by the appellate court and affirmed by the High Court.

6. For the foregoing, this Court does not ordinarily interfere with concurrent findings of the courts below unless the same are shown to be the result of gross misreading or non-reading of evidence or suffer from a patent error of law. No such infirmity has been demonstrated in the impugned judgment. The learned High Court has correctly appreciated the scope of revisional jurisdiction and has declined interference for valid reasons. Consequently, no case for grant of leave is made out and this petition is dismissed.

Chief Justice

Judge

Judge

Islamabad:
09.06.2026

Approved for Reporting
[Simra Sohail, L.C]